

THE EXECUTOR'S DESK

# Scripts & Letters Pack

Twelve more phone scripts and nine more letters for the conversations executors dread: collectors, siblings, employers, landlords, the DMV, the pension office, and the relative who wants the car this weekend.

Companion to *The First 90 Days*. Fill in the brackets, read it out loud if you need to, and log every call. United States edition. General information, not legal advice; where a rule depends on your state, check with the probate court in the county where your parent lived.

## Scripts for the calls that stall

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### BROKERAGE OR MUTUAL FUND COMPANY

"I'm calling about accounts held by [name], who died on [date]. I'm the executor. I need three things: the date-of-death value of each holding, the name of any transfer-on-death beneficiary, and the exact forms and documents your estate services team needs to retitle or liquidate. Please open a case number and email me the checklist." *They will want a Medallion signature guarantee for transfers; ask where you can get one before you need it.*

### PENSION ADMINISTRATOR OR FORMER EMPLOYER HR

"[Name] was a retiree or former employee; they died on [date]. Please stop any pension payments effective the date of death, tell me whether a survivor benefit or a return of contributions applies and to whom, tell me whether any payment issued after the death must be returned, and send the claim forms. Also, was there any group life insurance or unpaid vacation pay?"

### DMV (TITLE TRANSFER)

"I'm the executor for [name], who died on [date]. There's a vehicle titled in their name alone. What do you need to transfer or sell it: certified Letters, the death certificate, the title, an affidavit? Is there a small-estate form for vehicles, and does it have a waiting period?"

### LANDLORD OR PROPERTY MANAGER (PARENT WAS RENTING)

"[Name] died on [date] and I'm handling the estate. I'd like to know the lease end date and whether state law lets the estate end it early on a death, what notice you need, and how the security deposit will be returned to the estate. We'll clear the unit by [date]; please don't dispose of anything before then."

### MEDICAL BILLING OFFICE OR HOSPITAL

"I'm calling about bills for [name], who died on [date]. Please send an itemized statement for all dates of service to me as executor at [address], and confirm whether Medicare or the supplemental plan has been billed. Claims against the estate go through the probate process; I am not agreeing to pay personally. Please note the account as 'deceased, estate pending.'"

### MORTGAGE SERVICER

"The borrower died on [date]. I'm the executor. I want to keep the loan current while the estate is settled. Please note me as the authorized contact, send statements to [address], and tell me what you need to discuss payoff or assumption. Federal rules let a successor in interest get information about the loan; please treat this as my request to be confirmed as one."

### STORAGE UNIT, GYM, SUBSCRIPTION SERVICE

"[Name] died on [date]. Please cancel the contract as of the date of death and refund any prepaid period to 'The Estate of [name].' I can send a death certificate copy. Please confirm in writing that no further charges will be made."

## Scripts for pressure

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### DEBT COLLECTOR CALLING ABOUT YOUR PARENT'S DEBT

"I'm the executor of [name]'s estate. I am not personally responsible for this debt. Send any claim, in writing, to me at [address] with an itemized statement and proof of the debt. Do not call other family members about this account. I'm noting the date and time of this call." *Then hang up. Do not confirm the balance, do not promise anything, do not give your own information beyond the mailing address.*

### COLLECTOR SAYING YOU MUST PAY BECAUSE YOU ARE THE CHILD / USED THE CARD / LIVE IN THE HOUSE

"Put the legal basis for that in writing and mail it to me. Until then, I consider this a claim against the estate only." *Children are not liable for a parent's debts unless they co-signed or held the account jointly. A few states have spouse-only exceptions.*

### SIBLING WHO WANTS THEIR SHARE NOW

"I get it, and I want this done as much as you do. Here's the constraint: I'm not allowed to distribute anything until the creditor claim period closes on [date] and the taxes are reserved for. If I pay early and a claim comes in, the law makes me personally repay it. I'll send everyone the same update on the first of each month, and I'll tell you the moment a partial distribution is possible."

### RELATIVE WHO WANTS TO TAKE THE CAR, THE TOOLS, THE RING THIS WEEKEND

"Nothing can leave the house until the inventory is done and photographed; that protects all of us, including you. Once it's done, here's how we're dividing personal things: [method]. If Mom's will names you for that item, it's yours and I'll get it to you after the inventory."

### SIBLING WHO THINKS YOU ARE HIDING SOMETHING

"You're entitled to see everything, and you will. Here's the inventory as it stands, here's the estate account statement, and here's the list of what's still unknown. Ask me anything; I'll answer in the group email so everyone sees the same thing."

### SOMEONE OFFERING TO BUY THE HOUSE "AS IS, FOR CASH, THIS WEEK"

"Thank you. The estate will get a licensed appraisal first and any sale will be at or near market value with the beneficiaries informed. If you'd like to make an offer after that, send it in writing." *You have a duty to get fair value. Quick cash offers rarely are.*

## Letters, set one

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### Notice to beneficiaries and heirs that you have been appointed

[Date]

Dear [name],

On [date] the [county] probate court appointed me [executor / personal representative] of the estate of [parent's name], who died on [date]. A copy of the Letters is enclosed.

My job is to gather the estate's assets, pay its valid debts and taxes, and then distribute what remains according to the will [or state law]. The court process takes months; distributions come at the end so that no one has to return money later. I will send everyone the same written update on the first of each month.

Please send me your current mailing address, phone and email, and let me know if you prefer updates by mail. If you have questions, reply to this letter or email; I will answer everyone at once so we all have the same information.

Sincerely,

[Your name], as [title] of the Estate of [parent's name]

[Address · phone · email]

### Written dispute of a creditor's claim

[Date] · [Creditor] · [Address]

Re: Claim dated \_\_\_\_\_ against the Estate of \_\_\_\_\_, account ending \_\_\_\_\_

The estate disputes this claim [in full / in the amount of \$\_\_\_\_] because [the balance does not match the statement dated \_\_\_\_ / the charges after the date of death were not authorized / the claim was received after the deadline of \_\_\_\_ under state law / no documentation of the debt was provided]. Please provide an itemized statement and the original agreement within 30 days. Until the estate receives and reviews that documentation, the claim is not allowed. This letter is not an acknowledgment of the debt.

[Your name], as [title] of the Estate of \_\_\_\_\_

### Request for a Medallion signature guarantee appointment

[Date] · [Bank branch manager] · [Address]

I am the court-appointed [executor / personal representative] of the Estate of \_\_\_\_\_ and an account holder at your branch. [Brokerage] requires a Medallion signature guarantee on the enclosed transfer form. Please let me know when I can come in with my ID, certified Letters, the death certificate, and the unsigned form. Thank you.

## Letters, set two

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### Life insurance claim cover letter

[Date] · [Insurer], Claims Department · [Address]

Re: Policy \_\_\_\_\_ on the life of \_\_\_\_\_, died \_\_\_\_\_

Enclosed are the completed claim form, a certified death certificate, and [my Letters, if the estate is the beneficiary / the beneficiary's identification]. Please confirm receipt, the expected timeline, and any interest payable from the date of death. If another document is required, please contact me by phone or email rather than by mail alone.

[Name, title, contact]

### Request for prior-year tax returns and records from the accountant

[Date] · [Preparer name and firm]

Dear [name],

I am the [executor / personal representative] of the Estate of \_\_\_\_\_, who died on \_\_\_\_\_ (Letters enclosed). Please send copies of the last three years of federal and state returns, any workpapers listing income sources and accounts, and your engagement terms if you are able to prepare the final individual return and the estate income tax return. If not, please recommend someone. Thank you for your help with what I expect will be a few questions over the coming months.

### Letter to the county assessor or recorder (real estate)

[Date] · [County assessor / recorder] · [Address]

Re: Parcel \_\_\_\_\_, \_\_\_\_\_ [property address]

The owner of record, \_\_\_\_\_, died on \_\_\_\_\_. I am the estate's [executor / personal representative] (Letters enclosed). Please (1) note the estate as the contact for property tax bills at the address below, (2) tell me what documents you require to record the transfer of title, and (3) confirm whether any exemption on the parcel (homestead, senior) ends with the death and when.

### Short note to a neighbor watching the house

Hi [name], thank you for keeping an eye on Mom's house. My number is [number]; please call if you see anyone there or packages piling up. Lawn service comes [day]; I'll be by [days]. Nobody else has a key. — [You]

## Who to notify, and what each one usually wants

| WHO                                    | WANTS                                                       | WATCH FOR                                                                                  |
|----------------------------------------|-------------------------------------------------------------|--------------------------------------------------------------------------------------------|
| Social Security                        | Name, SSN, dates; usually reported by the funeral home      | Month-of-death payment clawback; \$255 lump sum to spouse or eligible child within 2 years |
| Medicare / Medicaid                    | Death certificate copy                                      | Medicaid estate recovery claims in some states; do not ignore the letter                   |
| VA                                     | DD-214, death certificate                                   | Burial allowance, plot, flag, survivor pension                                             |
| Pension / annuity                      | Certified death certificate, claim form                     | Overpayment return; survivor option elected at retirement                                  |
| Banks / credit unions                  | Certified death certificate, Letters, EIN                   | POD beneficiaries skip probate; safe-deposit box rules                                     |
| Brokerages                             | Certified death certificate, Letters, Medallion guarantee   | Date-of-death values for basis; TOD beneficiaries                                          |
| Life insurers                          | Certified death certificate, claim form, beneficiary ID     | Interest from date of death; unclaimed policies via NAIC locator                           |
| Credit bureaus (one is enough)         | Death certificate copy, Letters copy, your ID               | Ask for the credit report: it lists every open account                                     |
| Credit card issuers                    | Death certificate copy, written notice                      | Never give your own card; balance is an estate claim                                       |
| Mortgage servicer                      | Death certificate, Letters, your contact info               | Keep paying from estate funds; successor-in-interest rights                                |
| Homeowner's / auto insurer             | Phone call, then Letters                                    | Vacancy clause at 30 to 60 days; no unlisted drivers                                       |
| Utilities                              | Phone call                                                  | Keep on; move to estate name after Letters                                                 |
| Post office                            | Letters and ID in person, PS Form 3575                      | Death certificate alone is not enough                                                      |
| DMV                                    | Title, Letters or small-estate affidavit, death certificate | Vehicle affidavits often have their own limit and waiting period                           |
| Employer HR                            | Death certificate                                           | Final pay, unused leave, group life, 401(k) beneficiary                                    |
| IRS                                    | Form 56, EIN application, final 1040, 1041 if needed        | Form 1310 for refunds; 706 only above the exemption                                        |
| State unclaimed property               | Online search, then claim form with Letters                 | Search old addresses and name variants too                                                 |
| Passport, voter registration, licenses | Death certificate copy                                      | Cancelling prevents identity misuse                                                        |

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